

HB 3186 -- LOCATION RESTRICTIONS FOR CERTAIN OFFENDERS

SPONSOR: Reuter

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Crime and Public Safety by a vote of 15 to 0, and 1 voting Present. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 0.

Currently, a sexual offender convicted of a certain sexual offense cannot be present or loiter within 500 feet of certain property, including a public swimming pool. This bill defines public swimming pool to include a community-based pool that is owned for the private use of five or more households, including swimming pools maintained for use by residents of an apartment complex or housing community.

PROPONENTS: Supporters say that this expands the definition of a public swimming pool as it relates to restrictions on sex offenders. This should be applicable in large apartment or condominium complexes because there are a lot of kids running around these complexes and some of these offenders have balconies that look over the pool.

Testifying in person for the bill were Representative Reuter; Arnie Dienoff; Linda E. Schroeder, Les Rental Properties LLC; and Angela English.

OPPONENTS: Those who oppose the bill say that the bill is too broad and could have unintended consequences, further alienating registrants from their communities, making recidivism more likely. This encroaches on the freedoms of parents by now restricting where they can live, because they could not live anywhere that has a pool. This could also include hotel pools. So parents cannot take vacations with their children and stay at a hotel.

Testifying in person against the bill was Mo Alliance For Family Restoration.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.